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Submitter Information

Name: Justin Torok

Address: United States,

Email: [REDACTED]

General Comment

As currently implemented, generative artificial intelligence (gAI) development is characterized by the outright theft of data scraped from the internet without the express permission of the owners of that data, which has been the subject of much scrutiny and criticism. Further, the labor landscape is increasingly bleak in tech sectors both in the United States and abroad. As a particularly salient example, workers in visual effects are increasingly being laid off as companies opt for gAI-based solutions – which, in a twist of irony, only exist because they have been trained on the very images produced by these workers without their consent. gAI therefore presents major intellectual property and labor concerns, among others. It is of the utmost importance that the guidelines establish and enshrine protections so that gAI does not continue to adversely affect individuals and small businesses.